

Day 7

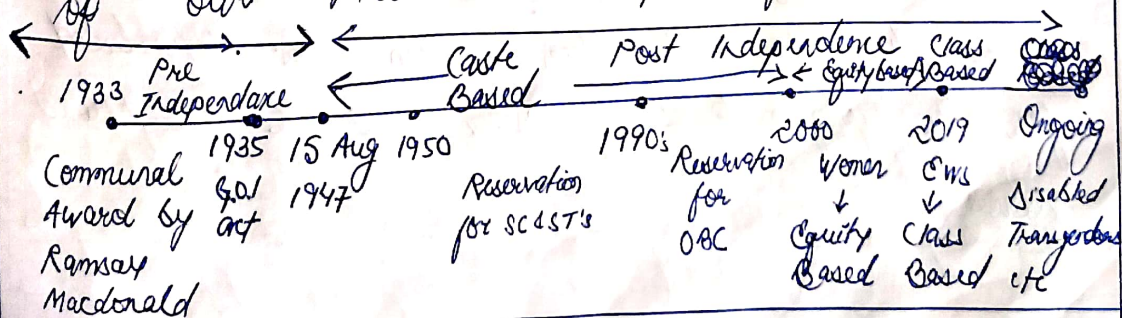
Critically analyze the shift from caste based to multi-axis affirmative action in India with examples from recent state level initiatives sub categorization and gender based reservation.

Demand 1: Analyze the shift → ^{Intro} Show linkage & implications with viewpoint if possible

Demand 2: Include examples from states

- (i) Focus on Sub Categorization
 - (ii) Gender based Reservation
- > Use them as sub headings viewpoint way forward Conclusion

~~With~~ With evolving time, India has shifted from caste based reservation to multi-axis affirmative actions like the gender based reservation, sub categorization etc which aims to reach the marginalized people or communities and provide them equal opportunity and ending social inequality and promote them which is one of the core objective of our Preamble (Blueprint of our Constitution)



~~(The)~~
Critical Analysis: Shift from Caste based reservation system to ~~Multi-caste~~

Pre Independence Period | The history of Caste based discrimination dates back to ~~Post~~ Pre-Independence period for which various societies or groups were formed for eg. Satyashodhak Samaj or Truthseeker's society was formed by Jyotirao Phule in 1873 for upliftment of the Dalits and against problems like untouchability.

Communal award of 1932

British Prime Minister Ramsey MacDonald introduced the 'Communal Award' in 1932 which provided separate electorate for Dalits and other communities, which was later revised through Poona Pact and reserved seats were given for Depressed Class & others.

Post Independence Period

~~(The constitution) introduced the~~

Due to ongoing social inequalities and discrimination, the reservation system was introduced for the upliftment of deprived ones i.e. marginalised class.

4. Initial reservations: Introduced through 1st Const. amendment 1951

- It was on the basis of ascriptive ascriptive identity i.e. birth based structural disadvantage & caste.
- Income was not a factor. This reservation was seen as compensatory justice for the discrimination and exclusion faced by ~~them~~ the SC's and ST's.

Reservations in Education and Job (Public employment) were provided to them by means of Article 15(4) and Article 16(4) respectively.

15% reservation for SCs

7.5% reservation for STs

Seats were also reserved for them under Article 330 and 332.

Limitation: There is no concept of creamy layer with respect to SC/ST reservation due to which ~~due to which~~ it is an undue advantage to the ones who are financially strong and empowered while it was meant for equal opportunity.

Merits: There has been significant reduction in gap and it has provided social justice to most of them who were unprivileged.

b. Reservation for OBC's : 1990

It shifted the untouchability based stigma (SC/ST) to cumulative social backwardness rooted in educational deprivation & occupational inferiority

- Mandal commission (~~1977~~) ⁽¹⁹⁷⁹⁾ used social, economic & educational indicators to identify OBC's and granted them 27% reservation in central services
- Concept of creamy layer was introduced and Total reservation was capped at 50%.

c. Reservation on the Basis of Gender

It shifted towards gender and introduced concept of horizontal reservation

- The 73rd & 74th Amendments (1992-1993) mandated 33% reservation for women in Panchayati Raj Institution and Urban local Bodies

Motif: It aims to Empower women and promote social mobility

Example: Our state Bihar is a role-model in empowering women as it provides

- (i) 50% women reservation in Panchayats (^{1st to do so} ~~50%~~)
- (ii) 35% horizontal reservation for women in state jobs across all categories

- Government provides incentives for companies which have higher female employees.
- ~~Before~~ M.P and Uttarakhand have implemented 33% reservation for women in state government jobs.
- States like Jharkhand and Chhattisgarh have implemented quota based recruitment for women judges so that to increase their representation.
- The Constitution Amendment act i.e. 106th Amendment 2023, reserves $\frac{1}{3}$ rd of seat for women in Lok Sabha, state legislative assembly and legislative assembly of National Capital Territory of Delhi including those reserved for SC & STs.

1. Economic Weaker Section Quota 2019

- It is a landmark shift to class based reservation i.e. on the basis of Economic disadvantage.
- It introduces 10% reservation for EWS among general category candidates (non SC/ST/OBC) and is applicable to education and public employment. It was brought through 103rd Constitutional amendment act.
 - It is core rural reservation model.

C. Reservation on other basis :/

Reservations are provided on basis of intersectionality to

- Disabled people
- Transgender
- Religious minorities

so that to have inclusive framework.

D. State Reservation on Basis of State level Sub categorisation

Based on varying level of backwardness, the states are allowed to sub classify SCs & STs so that to ensure fair distribution of reservation benefits

eg : Telangana ~~will~~ divided SCs on different basis for education and employment and grouped them under three categories (Group 1, Group 2 and Group 3) and ~~will~~ ~~be~~ ~~have~~ been allotted with reservation accordingly to have homogenous mixture.

Reservation Category	Reservation Quota
ST	7.5%
SC	15%
OBC	27%
EWS	10%
Total	59.50%

The shift towards multi-axis affirmative action from caste based classification is a significant approach to achieve social equality as it targets to include the people or group which is still marginalized, and alleviate them. ~~to same~~